

IPD Contract Mechanics, Economics, Insurance & Legal Risk

PREPARED 2026-07-18 REFRESH OF KOR-IPD-ALBERTA-BC, DATED 2026-07-03 INTERNAL

How to read this: claims are **v** verified against a primary or independently-corroborated authoritative source, **I** inferred or single-source, or **UNVERIFIED** a lead, not confirmed. This addendum does not replace the 2026-07-03 dossier — that one is frozen; this layers new material on top, for the same reader: a KOR principal deciding whether/how to sign an IPD contract. Five research streams ran independently; findings are cross-checked against each other where they overlap.

1 · CCDC 30-2025

What actually changed versus CCDC 30-2018

v CCDC 30-2025 is real, released 2025-06-30, superseding the 2018 edition, alongside updates to CCDC 5A, 5B and 17, plus a new companion guide CCDC 30-G–2025. Confirmed via ccdc.org's product page and independently corroborated by BLG (2025-07-29), Miller Thomson (2025-09-10), Gowling WLG (2025-07-31), Clark Wilson (2025-11-17) and Pallett Valo (2026-01-30). Full contract text remains paywalled (\$15–\$140); everything below rests on 2+ corroborating law-firm bulletins per claim.

Structure

v Reorganized around project lifecycle: **Validation Phase** (now formally defined as occurring after contract execution) → **Project Execution Phase** (design, procurement, construction, warranty) → General Articles/Conditions. A new **"Ready-for-Takeover"** milestone (imported from CCDC 2–2020) replaces "substantial performance" as the marker into Warranty Phase.

Money mechanics — directly relevant to fee-at-risk

- v "Risk Pool" formally renamed "Profit Pool."** CCDC's own rationale: the new term "more accurately reflects the intent and nature of the funds." A naming change, not (on the evidence found) a mechanical change to how the pool grows or shrinks.
- v Added Value Incentive Items (AVIIs)** can now be added by the owner during the **Construction Phase**, not only Design Phase as in 2018 — scope-creep-via-incentive can now arrive after your design

effort is largely sunk.

- **v** Reimbursable-cost schedules expanded and made more customizable; overhead categories more clearly specified; audit procedures around reimbursables strengthened.

Flagged discrepancy — do not repeat without checking the text: one stream surfaced a claim of a specific new liability cap ("greater of fee/contract price or \$2M, capped at \$20M") attributed to cwilson.com/Pallett Valo/a Lexology-syndicated summary. A second stream that read Clark Wilson and Pallett Valo directly for CCDC 30 content did not surface this figure — it may belong to the CCDC 5A/5B/17 design-build/CM family rather than CCDC 30 itself. Confirm against the actual contract text before citing a dollar figure.

Collaboration / governance additions

- **v** **"Big Room"** co-location practice formalized in the contract text.
- **v** New **optional "IPD Advisor" role** — an independent individual/organization "qualified to provide guidance on IPD and Lean principles," jointly appointed by the Project Management Team, chiefly to coach the team through Validation.
- **v** Lean construction principles now explicitly referenced in the contract text.

Liability waiver — the clause that matters most to a signing consultant

v The core no-fault, mutual-waiver-of-claims structure among IPD Team members is **preserved unchanged** in 2025.

v **New: a mutual waiver of consequential damages was added** across the CCDC 5A/5B/17/30 family — but "consequential damages" is left contractually undefined, mirroring CCDC 2-2020's (also criticized) approach. Two independent streams corroborate this applies to CCDC 30 specifically. Commentary flags the undefined term as a likely future dispute driver.

"The owner is still liable for the cost of the project to completion and is precluded from legal action" — even once the Profit Pool is exhausted by an overrun.

Clark Wilson LLP, CCDC 30-2025 client bulletin — 2025-11-17

Clark Wilson explicitly says CCDC 30 (any edition) needs "careful review as to its suitability" before use. **v**

UNVERIFIED for CCDC 30 specifically — a carve-out for wilful misconduct, wilful default, fraud, criminal acts and abandonment is confirmed as a 2025 CCDC-suite feature generally, but sources fetched directly named it only for CCDC 5A/5B/17. No fetched source's exact text ties it to CCDC 30 by name — confirm against the actual text before repeating this to a client or counterparty.

I No evidence of a change to **who** is covered by the waiver (e.g., extension to sub-consultants/trades).

Joining-agreement mechanics & Validation Phase

I No bulletin describes a change to how a consultant executes onto the multi-party agreement — CCDC 30 remains a single contract signed from inception, with smaller consultants able to flow through under a prime party. Appears unchanged from 2018.

V Validation Phase is now formally a distinct, defined phase occurring after contract execution, producing a Validation Report that sets Base Target Cost, Milestone Schedule and risk/contingency profile — after which the owner may proceed, adjust scope, or withdraw. Termination/compensation procedures for a rejected Validation Report were clarified and enhanced.

Bottom line: buying and reading the actual CCDC 30-2025 text (base dossier action 2, ~\$100) remains the right move — this addendum resolves most of the "what changed" question, but the liability-cap figure and the wilful-misconduct carve-out both need the primary document to close out.

2 · STRUCTURAL-ENGINEER ECONOMICS

Still does not exist — now confirmed against the best possible source

No public source isolates a Canadian structural or engineering consultant's own financial outcome (profit-pool share won or lost, fee-at-risk realized) on an IPD project. This confirms and hardens the base dossier's finding rather than changing it — but now confirmed against the single best dataset that could plausibly contain it.

The core source

V *Investigating Factors Leading to IPD Project Success in Canada* (Erik A. Poirier & Ahmad Arar, ÉTS/GRIDD; Sheryl Staub-French, Puyan Zadeh & Devarsh Bhonde, UBC BIM TOPiCS Lab; commissioned by the Integrated Project Delivery Alliance, 2022-05). Full PDF read directly. Methodology replicates the 2016 US "Motivation and Means" study; interviews with virtually every signatory — **including the structural engineer, named, on all three projects** — plus document review and survey.

- Barrie-Simcoe Emergency Services Campus (Barrie, ON, \$85.8M) — structural engineer **LEA Consulting Ltd.**, interviewee John Ford.
- Canada Games Aquatic Centre (Kamloops, BC, \$14.1M) — structural engineer **WSP Canada Inc.**, interviewee Patrick Taylor (also IPDA Treasurer — base dossier §5).
- Thelma Chalifoux / Soraya Hafez Schools (Edmonton, AB) — structural engineer **RJC**, interviewee Jeffrey Rabinovitch.

✓ The "Profit & Payout" finding, verbatim in substance: all three projects paid out their full Incentive Compensation Layer — every signatory received full profit. Team-level savings and owner/team split ratios are disclosed (e.g., CGAC: \$1M savings, split 70/30 owner/team). **At no point does the report break out what LEA, WSP, or RJC individually received, lost, or risked.** The only discipline-adjacent nuance anywhere in the document is an owner-vs-owner split on BSESC — not a consultant-level figure.

Why this is the finding, not a gap in the search: this is a well-resourced study that specifically interviewed the structural engineers by name on three Canadian IPD projects, and it still reports only project-level ICL payout, never a discipline-level breakdown. That is a structural feature of how IPD financial reporting works — both contractually (one team-wide Profit Pool) and in research practice — not a research-effort shortfall.

Other channels checked — all negative or inconclusive

- ✓ leanipd.com's Canadian case studies (same three projects) name the structural engineer per project but disclose no firm-level financials.
- UNVERIFIED The 2016 US "Motivation and Means" predecessor (Cheng & Johnson) — only secondary citations found, not full text.
- UNVERIFIED A UBC thesis on IPD housing projects (item 1.0378439) — access blocked twice; likely same UBC lab as the 2022 report, structure probably similar, not confirmed.
- UNVERIFIED Canadian Consulting Engineer, Daily Commercial News / Journal of Commerce — nothing indexed found.
- Fast+Epp, RJC, Entuitive, WSP all confirmed active in Canadian IPD (consistent with base dossier \$4/\$6); none publishes its own project-level IPD P&L. Entuitive's "profit-sharing" language refers to an internal firm-wide employee bonus program, not IPD project payout — don't conflate the two.

3 · INSURANCE

No doctrinal shift — one fresh Canadian citation

The substantive picture has not changed since well before the base dossier — the load-bearing content (PSPL as the standard fix, rectification coverage as the IPD-specific feature, the insured-vs-insured/contractual-liability-exclusion problems the mutual waiver creates) dates to 2023 and earlier. This addendum adds one genuinely new Canadian citation and closes the loop on who runs Canada's engineer PL program.

Without project-specific professional liability insurance in place, the CCDC 30 GC 10.1 mutual-claims waiver "falls apart" — a PSPL claim doesn't require a lawsuit, so it doesn't collide with the contract's no-suit structure.

Navacord (formerly Lloyd Sadd), lloydsadd.com — ~2025-09-04

- ✓ This is the current Canadian broker-consensus answer to the base dossier's open insurance question: **a single project-specific professional liability policy covering the whole IPD team**, not per-firm endorsements to individual practice policies, and not a mandatory OCIP/CCIP wrap (one unattributable secondary snippet suggested OCIP+PSPL combined for larger projects — **UNVERIFIED** authorship/date).
- ✓ **Rectification/mitigation coverage** remains the key IPD-specific policy feature — it pays to fix a defect before it becomes a claim, sidestepping the no-blame structure entirely. Confirmed by NFP (2023) and Navacord (2025) independently.
- ✓ **Who runs the standard Canadian engineer/architect PL program:** Victor Canada (formerly ENCON Group Inc., a Marsh & McLennan/Victor O. Schinnerer & Co. subsidiary), jointly endorsed by Engineers Canada and ACEC Canada since 1969. Its "Single Project Coverage" product (architects, engineers, land surveyors, landscape architects, PMs on a named project — claims-made, full prior-acts coverage, limits to \$25M, no insured-vs-insured exclusion) is a plausible IPD fit, though the product page itself does not name IPD or mutual waivers explicitly.
- ✓ The most current Canadian legal survey found — Chambers Practice Guide, "Construction Law 2026 — Canada" (BLG authors, 2026-06-04) — confirms IPD/alliance adoption is "growing but limited" and flags **Quebec's Bill 62, effective 2026-04-01**, formally opening municipal collaborative contracting (new geography outside KOR's AB/BC footprint, a national-momentum signal). This guide has **zero substantive PL-insurance or mutual-waiver coverage** — itself informative: insurance treatment of IPD is still a specialist/broker topic, not mainstream legal-practice doctrine.

No IPD-specific published content found from Aon Canada, Marsh Canada, BFL Canada (dated/attributable), Gallagher/AJG, HUB International, Jones Brown, or Novex — doesn't mean they lack a view, means they haven't published one. The base dossier's "Aon executive" quote (David Bowcott) is from 2021 — old, not new to this window.

Net assessment: nothing here changes the base dossier's action item (broker conversation before any signature). What's new is a name to bring to it — **Victor Canada / ENCON** — plus the Navacord PSPL framing as talking points, not a change in what to do.

No new cases — one existing case has escalated to appeal

No new Canadian IPD or alliance-contract court decision or arbitration award, beyond the two the base dossier already knew, was found after a direct CanLII search and a law-firm-bulletin sweep — but one known case has moved stages, and the other's vintage needs correcting.

Onec Construction v. NWT Energy — now under appeal

V The trial decision (2025 NWTSC 56 — Inuvik High Point Wind Project access road, NWT; contract termed "Integrated Project Delivery Contract," signed 2022-03-15) is unchanged in substance. **New:** the NWT Court of Appeal's pending-appeals list (nwtcourts.ca, primary source, pulled directly "as of 2026-07-18") shows docket **A-1-AP-2025-000011**, judgment 2025-08-06, appeal filed 2025-09-03, Respondent Factum filed 2026-06-12, no hearing date yet. **The legal interpretation of "IPD contract" the base dossier draws from this case is therefore not yet final law** — flag this wherever the case is cited going forward.

The "Saskatchewan IPD arbitration" — identified, and it's old

V Almost certainly *Graham Design Builders LP v. Black & McDonald Ltd.* (Dr. F.H. Wigmore Regional Hospital, Moose Jaw, SK). Arbitrator awarded BML ~\$12.0M cost-to-complete + ~\$1.44M profit + interest; Graham's leave to appeal denied, **2019 SKQB 161**. **This is a 2018–2019 case, not a 2024+ development** — the field's original landmark Canadian IPD dispute, still cited as such as recently as 2025-12-05, with no successor Saskatchewan case since.

Systematic negative result

I CanLII direct searches and a sweep of 2025–2026 law-firm bulletins (Glaholt Bowles 2025-12-05, DWF Canada Winter 2026 brief, Chambers 2026-06-04) surfaced no additional IPD/alliance case law. **Two years of searching turns up zero instances of a design consultant or engineer being named as a party, or discussed as a liability target, in any Canadian IPD/alliance dispute** — both known cases are owner/contractor/subcontractor payment-and-performance disputes with no consultant involvement. This absence is itself the risk-relevant finding for a structural engineering firm.

Context, not a dispute: Burnaby Hospital redevelopment is proceeding via BC's "Alliance model" (2026 coverage) — a live BC alliance project worth watching, consistent with base dossier §6.

EGBC and APEGA both still at zero; ACEC likewise

v EGBC: no change since the base dossier. Direct site searches and an indexed-crawl check surfaced no EGBC-authored publication on IPD, alliance contracting, or CCDC 30. The verified-absence finding stands unchanged. EGBC's only connection: credited as a compliance-review contributor (not author) on ACEC-BC's budget guidelines — below.

v APEGA: confirmed zero — a new, previously-unconfirmed data point (the base dossier focused on EGBC). APEGA's full Practice Standards/Bulletins/Guidelines index (most recent items 2025-11-01 and 2025-04-01) contains nothing on delivery models.

v ACEC (national): nothing dedicated found. One older award-profile mention only — Drayton Valley (ISL Engineering) as the first Canadian municipal-infrastructure CCDC 30 project, and Kingston's Waaban Crossing as the first North American IPD bridge.

v ACEC-BC: one adjacent document — "Budget Guidelines for Engineering Services, Document 1 – Transportation & Infrastructure," Version 2, 2025-08, §7.2 "Risk Shared Consulting Assignments," stating consultants should be fully remunerated for proposal-development effort on Alliance/IPD assignments. **Caveat:** this exact language also appears in ACEC-BC's 2022-11 "Document 2 – Buildings" — carried-over boilerplate, not new 2025 substance.

CCDC ran a 30-session seminar roadshow (Apr–May 2025) introducing CCDC 30-2025, then a 24-session 2026 roadshow focused on the newer CCDC 32-2026 Progressive Design-Build documents. **None of these seminars were found to be hosted, co-branded, or promoted by EGBC, APEGA, or ACEC.** The CCDC 30-2025 release is the logical trigger for eventual professional-body guidance, but as of 2026-07-18, none has followed.

STILL COULD NOT VERIFY

- The specific CCDC 30-2025 liability-cap figure (\$2M/\$20M) — one-stream sourced, not corroborated; may belong to the CCDC 5A/5B/17 family.
- Whether the wilful-misconduct/fraud carve-out applies verbatim to CCDC 30's text (confirmed only for CCDC 5A/5B/17).
- Full primary-source text of CCDC 30-2025 (paywalled — base dossier action 2 remains the way to close this).
- Content and financial-breakdown status of the UBC thesis on IPD housing projects — access blocked twice.
- The 2016 "Motivation and Means" report's original text — only secondary citations found.
- Whether Canadian Consulting Engineer / Daily Commercial News / Journal of Commerce have ever run a structural-consultant-specific IPD profit story.

- BFL Canada's actual authorship/date for the OCIP+PSPL/rectification snippet.
- Any 2025–2026 published IPD/mutual-waiver guidance from Aon, Marsh, Gallagher, HUB International, or Jones Brown.
- Trial judge (2025 NWTSC 56) and arbitrator (Graham v. Black & McDonald) names, and counsel of record on the Onec appeal.
- Whether ACEC-BC or ACEC-Alberta formally co-hosted any 2025/2026 CCDC seminar session.

PEOPLE & ORGS FOUND

For CRM logging

LAW FIRMS / LAWYERS — CCDC 30-2025

Gowling WLG (Karina Labelle) · Clark Wilson LLP (Scott Lamb, Kim Do) · Miller Thomson (Cobi Dayan) · BLG (Bill Woodhead, Theron Davis, Gustavo da Roza, Cailin te Stroete, Jesalyn Reimann) · Pallett Valo (Jeremy Power) · Osler Hoskin & Harcourt (webinar, content unconfirmed) · Dentons (fetch blocked) · Beale & Co / RAR Litigation (Rocco Ruso, Frank Martino — 5A/5B/17 only) · Glaholt Bowles (Brendan D. Bowles) · Singleton Urquhart Reynolds Vogel (Bruce Reynolds, Sharon Vogel, Nicholas Reynolds, Kathryn Irwin — no dedicated 2025 piece located)

LAW FIRMS — DISPUTES/TRENDS SWEEP

Chambers guide authors Trish Morrison KC, Patrice Morin, Michael Skene, Andrew Punzo (BLG) · DWF Canada · McMillan LLP (Geza Banfai, quoted 2026-07-16 by reporter Don Wall, Daily Commercial News)

INSURANCE — BROKERS, INSURERS, ADMINISTRATORS

Victor Canada (formerly ENCON) · Navacord (formerly Lloyd Sadd, merged with Iridium Risk Services 2025-11-01) · NFP · Aon Canada (David Bowcott, quoted 2021) · Marsh Canada · BFL Canada · Gallagher/AJG Canada · HUB International Canada · Jones Brown Inc. · Novex Insurance · Engineers Canada + ACEC Canada (joint program sponsors since 1969)

ACADEMIC / RESEARCH

Erik A. Poirier & Ahmad Arar (ÉTS/GRIDD) · Sheryl Staub-French, Puyan Zadeh, Devarsh Bhonde (UBC BIM TOPiCS Lab) · Renee Cheng & Andrew Johnson (U. Minnesota, 2016) · IPDA + LCI (co-commissioning bodies)

NAMED STRUCTURAL ENGINEERS ON CANADIAN IPD PROJECTS

John Ford, LEA Consulting — Barrie-Simcoe ESC · Patrick Taylor, WSP Canada — Canada Games Aquatic Centre (already known, IPDA Treasurer) · Jeffrey Rabinovitch, RJC — Thelma Chalifoux/Soraya Hafez Schools (already known, RJC regional IPD lead) · Paul Creighton, Entuitive — building envelope, CGAC

PROFESSIONAL BODIES

EGBC (zero, compliance-reviewer only) · APEGA (zero, newly checked) · ACEC Canada (zero dedicated) · ACEC-BC (one boilerplate mention, one unrelated position paper) · CCDC (publisher of CCDC 30-2025, 30-G-2025, 32-2026)

COURTS / PARTIES

Supreme Court of the NWT (trial) + Court of Appeal for the NWT (docket A-1-AP-2025-000011) · ONEC Construction Inc., NWT Energy Corporation (03) Ltd., Northland Builders Ltd., Liberty Mutual Insurance Company · Saskatchewan Court of Queen's Bench (2019 SKQB 161) · Graham Design Builders LP, Black & McDonald Ltd.

Source list: ccdc.org · blg.com · millerthomson.com · gowlingwlg.com · cwilson.com · pallettvalo.com · dwfgroup.ca · osler.com · lloydsadd.com · nfp.com · victorinsurance.com · engineerscanada.ca · practiceguides.chambers.com · fasken.com · nwtcourts.ca (primary) · canlii.org · glaholt.com · ipda.ca (primary) · leanipd.com · egbc.ca · apega.ca · acec.ca · acec-bc.ca · dailycommercialnews.com · fenner-esler.com

Method: five independent research streams (CCDC 30-2025 text; structural-engineer economics; insurance; legal disputes; professional-body guidance), each checked claim-by-claim against primary or corroborating secondary sources. Cross-stream overlaps (the consequential-damages waiver; the liability-cap discrepancy) are noted in text rather than silently resolved. This addendum layers onto KOR-IPD-Alberta-BC-2026-07-03, which remains frozen. Prepared 2026-07-18.